

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

WP No. 19414 of 2019

Imtiaz Ahmad
vs
Addl: District Judge etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
----------------------------------	---------------------------------	---

03.04.2019 Mr. Abdul Qadus Rawal, Advocate.

Through this constitutional petition, the petitioner has called in question judgment and decree dated 30.10.2018 passed by Judge Family Court, Pattoki, whereby the suit for recovery of dowry articles was decreed to the extent of 60% of its value and has called in question judgment and decree of the appellate court dated 13.02.2019 whereby the said decree was upheld.

2. Learned counsel for the petitioner has relied upon the judgment reported as **Mst. Allah Rakhi vs. Tanvir Iqbal and others** (2004 SCMR 1739) to argue that respondent No.3 (“**respondent**”) has failed to prove list of dowry articles produced in evidence as having not been prepared at the time of marriage rather the said list has been prepared by counsel for the respondent at the time of filing of the suit.

3. From evidence available on record, it is seen that the respondent claimed dowry articles valuing Rs.10,38,900/- as per list produced in evidence as Exh-P3. Although the said list is not stated to have been prepared at the time of marriage rather claimed to be prepared at the time of filing of the suit. However, the courts below have taken this aspect of the matter into consideration and excluded the claim of the respondent

relating to buffalo and calf mentioned at Serial No.15, gold ornaments mentioned at Serial Nos. 47 to 49 and articles mentioned at Serial Nos. 26 to 28, 30 to 35, 45 and 46 as the said articles were of the nature that may have lost value or destroyed by use. The remaining articles as per list (Exh-P3) are such articles that are ordinarily given to the bride at the time of marriage by her parents. The respondent as well as her witnesses have supported the claim in the plaint by entering into witness box and the courts below rightly concluded the said articles to have been given to the respondent as dowry articles which is in consonance with the principle laid down by the Hon'ble Supreme Court in the judgment reported as **Muhammad Habib vs. Mst. Safia Bibi and others** (2008 SCMR 1584) wherein although list was not proved to have been prepared at the time of marriage but the Court upheld the decree by observing that the articles mentioned therein as dowry articles are ordinarily given to the bride by her parents. By relying upon the principles laid by the Supreme Court in the said case, the findings of the courts below, which are concurrent findings of fact, are upheld as no illegality, perversity or erroneous exercise of jurisdiction has been pointed out.

4. As regard the alternate price of the dowry articles is concerned, the courts below by taking into consideration wear and tear factor have rightly fixed their alternate price. No exception can be taken to the same.

5. For what has been discussed above, this petition being devoid of any merit is ***dismissed***.

(MUZAMIL AKHTAR SHABIR)
JUDGE